

Court No. - 2

Case :- WRIT - C No. - 826 of 2023

Petitioner :- Anand Kumar Bajpai

Respondent :- State Of U.P. Thru. District Magistrate/Collector
Distt. Unnao And 5 Others

Counsel for Petitioner :- Neelam Pandey

Counsel for Respondent :- C.S.C., Amit Kumar Dwivedi, Amit
Sharma

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Manish Kumar, J.

Heard learned counsel for the petitioner and Shri Amit Sharma,
learned counsel for the respondent no. 2.

Shri Amit Sharma, learned counsel for the respondents shall
seek instructions from the respondent nos. 2 as to why the
petitioner is being saddled with the recovery of dues, which are
more than 20 years old and which relates to the time when the
electricity connection had been issued in the name of Smt.
Deepti Gupta, W/o Ashish Gupta and D/o Kanhaiya Lal Gupta
when her address and other details are available with the
respondent no. 2 and recovery can be made from her.

List this case on 16.02.2023, as fresh.

Order Date :- 2.2.2023

Ashish

Court No. - 2

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Counsel for Respondent :- C.S.C., Amit Kumar Dwivedi, Amit Sharma

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Hon'ble Manish Kumar,J.

Sri Amit Sharma, learned counsel for the respondent, has received instructions, on the basis of which he has argued relying upon paragraph 4.1 of the Electricity Supply Code.

Learned counsel for the petitioner has placed reliance upon paragraph 6.15 of the Electricity Supply Code.

Let a counter affidavit be filed within three weeks.

One week's time thereafter shall be available to learned counsel for the petitioner to file rejoinder affidavit.

List this case on 23.03.2023.

Order Date :- 16.2.2023

Darpan Sharma

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Respondent :- State Of U.P. Thru. District Magistrate/Collector
Distt. Unnao And 5 Others

Counsel for Petitioner :- Neelam Pandey, Ram Mohan Mishra

Counsel for Respondent :- C.S.C., Amit Kumar Dwivedi, Amit
Sharma

Hon'ble Vivek Chaudhary, J.

Hon'ble Om Prakash Shukla, J.

Civil Misc.(Withdrawal) Application No.IA/9 of 2024

Learned counsel for the petitioner prays to withdraw present petition with liberty to file fresh petition as relevant facts have been left out.

Application is allowed.

With the aforesaid liberty, the petition is consigned to record as withdrawn.

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(Om Prakash Shukla, J.) (Vivek Chaudhary, J.)

Order Date :- 27.2.2024

Arjun/-